

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TURKEY

Complete Community Opposition How-To

This guide uses the Turkish terms and bodies you'll actually run into — the ÇED and the ÇED Olumlu decision, the public participation meeting, the iptal davası and yürütmeyi durdurma, the forest-clearance and "public benefit" decisions — and explains each in plain words the first time. Turkey's regulations change often, so always check the current position.

INTRODUCTION & FRAMEWORK

In the summer of 2019, on the slopes of **Mount Ida (Kaz Dağları)** in north-western Turkey — the mountain of Homer's Iliad — a Canadian company, Alamos Gold, was clearing forest for a cyanide gold mine at Kirazlı. Then the photographs got out: not the tens of thousands of trees the environmental report had allowed, but by some counts nearly two hundred thousand, felled across a mountainside that feeds the dam supplying water to a whole province. The response was extraordinary. Villagers, students, and citizens set up the **"Su ve Vicdan Nöbeti" — the Watch for Water and Conscience** — a protest camp near the mine that grew from a few dozen tents to hundreds, then to a march tens of thousands strong; more than a quarter of a million people signed against it. Under that glare, the company's **mining licences lapsed in October 2019 and were not renewed**. Alamos Gold stopped work and left — later filing a billion-dollar arbitration claim against Turkey. A mountain that a foreign miner had already begun to strip was saved, for now, by a community that would not leave.

The "Su ve Vicdan Nöbeti" — the Watch for Water and Conscience — that saved Mount Ida (Kaz Dağları) drew on a genuine toolkit, used by a community that watched the site and mobilised the country. A mandatory **environmental impact assessment (ÇED)** comes with a public meeting. **Administrative courts** will annul unlawful approvals and freeze works. **Expert site examinations** and **separately challengeable permits** open further fronts. And behind the domestic courts stands the **European Court of Human Rights**. But these tools have grave limits, and this guide states them plainly. A court victory here is **frequently not final**: when a court annuls an environmental approval, companies routinely re-apply, patch the deficiencies the experts identified, and obtain a new decision — sometimes without a fresh public meeting — and rulings have at times simply not been implemented (at Mount Ida the licences *lapsed* rather than being cancelled, the mining pressure continues, and the company filed a billion-dollar arbitration claim). Turkey pursues investment-led development in mining, coal, quarrying, hydro, and mega-infrastructure hard; the ÇED report is written by a firm the developer pays; the reviewing commission sits under the ministry that promotes investment; **Turkey is not a party to the Aarhus Convention**; standing is applied restrictively; and **protesters and defenders have faced police force, prosecution, and pressure**. Communities from Kaz Dağları to Cerattepe, Akbelen, Kızıdere, and Efemçukuru have fought exactly this pattern for years, so safety runs through this guide.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Turkish project needs its **ÇED Olumlu (EIA Positive)** decision; it needs separately challengeable permits — a **forest-clearance (orman izni)** or **"public benefit" (kamu yarar)** decision, water allocations, zoning;

and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — and in Turkey, the decisive early win is often against the *forest-clearance* decision, not the ÇED.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the ÇED is flawed or a forest is being cleared, the administrative courts genuinely bite** — they annul approvals and freeze works, especially where a company exceeds what its report allowed (the Kirazlı grievance).
- **But a court win is often not final** — expect re-application. So plan to fight the *next* approval too, and keep the movement and the media alive.
- **If the state backs the project, protest may be met with force** — protect your people, and combine the courts with mass mobilisation and, where domestic remedies fail, the European Court of Human Rights.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the public meeting, the ÇED, the administrative courts, the separate permits — and **run every front at once**, safely: the documents, the meeting, the courts, the movement, the press. That's how Kaz Dağları was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The central environmental gate is the ÇED (environmental impact assessment), run by the **Ministry of Environment, Urbanisation and Climate Change**, which convenes the review commission (MDK) and issues the final ÇED Olumlu (EIA Positive) or ÇED Olumsuz decision for larger projects; for smaller ones, the **provincial governorship** issues "EIA Required / Not Required" decisions. Crucially, a project also needs **sector permits** — **each separately challengeable**: forest clearance (orman izni), a "public benefit" (kamu yararına) decision where forest is cleared, water allocations, and zoning (imar planı). Know which decision you can contest — and remember the forest-clearance decision is often the softest link.

How a Project Moves — and Where You Jump In

The ÇED and the public meeting. The developer's licensed firm prepares the ÇED report; there's a **public participation meeting (Halkın Katılım Toplantısı)** in the affected area, and the review commission assesses the report. *Your opening* — *and it arms every later step*: attend and object at the meeting, and submit written objections to the commission. This builds the record.

The ÇED Olumlu decision. The ministry approves. *Your opening* — *a hard clock*: challenge it in the administrative court, watching the deadline that starts when the decision is announced locally.

The separate permits. Forest clearance, the "public benefit" decision, water and zoning permits follow. *Your opening*: challenge these too — often the decisive win.

Construction. *Your opening*: works exceeding what the ÇED allowed (the Kirazlı grievance) — a powerful ground.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure, and a foreign miner has investors and a reputation to protect. **What it still needs** — the ÇED not final or under challenge, the forest-clearance not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors with their own environmental and human-rights standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Ministry and its review commission** run the ÇED and can be pressed. The **administrative courts**, up to the **Council of State (Danıştay)**, annul unlawful approvals and grant a **stay (yürütmeyi durdurma)**. Expert examinations (**bilirkişi** reports and **keleş** site visits) shape the case. The **Ombudsman (Kamu Denetçiliği Kurumu)** takes maladministration complaints, and the **Human Rights and Equality Institution** takes rights complaints. Behind them all sits the **European Court of Human Rights**, where domestic remedies fail. And Turkey's **committed local movements, professional chambers (like the bar and the chambers of engineers), and its press** are the forces that reach furthest — the combination that carried Kaz Dağlar.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the ÇED is flawed or a company exceeded it, whether a forest-clearance decision can be attacked, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections at the public meeting	15–35%	during ÇED	low	On record; conditions or a redo
Annulment suit (iptal davası) + stay	30–55%	months–2 yr	low–mod	ÇED annulled; works frozen
Challenge to forest-clearance / permits	30–55%	months–2 yr	low–mod	The decisive early win
"Exceeded the ÇED" ground	30–55%	months	low–mod	Works halted for exceeding the report
Mass mobilisation (Kaz Dağlar-style)	30–55%	months–yr	low	Licence lapse; withdrawal; political cost
European Court of Human Rights	20–45%	years	low–mod	Turkey found in breach (external pressure)
Everything together (flaws/forest, public watching)	40–60%	1–3 yr	low–mod	Annulled, frozen, delayed, withdrawn
Everything together (state-backed, re-application)	20–40%	years	low–mod	Delayed repeatedly, conditioned, exposed

The levers that move the needle most are the **annulment suit with a stay**, the **challenge to the forest-clearance decision**, and **mass mobilisation**, backed by the media. Kaz Dağlar shows the ceiling (a foreign mine driven out). The honest floor is the re-application pattern — a court win a company patches and re-obtains — so plan to fight repeatedly, and count each annulment, stay, delay, and lapse as a win.

On cost and safety: objecting and organising are cheap, and the professional chambers and public-interest lawyers bring the annulment suits. But protest is policed and prosecuted — so document safely, protect the vulnerable, and route risk through lawyers, the chambers, and the press.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this ÇED, this forest-clearance, this flaw — is strong. Answer five questions in writing, safely.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over forest, a water source and its basin, protected and archaeological areas, farmland, communities. **Forest clearance and a threatened water source are your sharpest levers**, so this map is your most important document — Kaz Dağlar turned on forest and a drinking-water dam.
- 3. What stage is it at, and what's the next deadline?** Is the public meeting scheduled? Has the ÇED Olumlu been announced (starting the annulment clock)? Are permits being issued? These openings are strictly time-bound, and local announcements start your clock.
- 4. What does it still need that it lacks?** A ÇED not final, forest-clearance not granted, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, the local association, the professional chambers, the wider public. Kaz Dağlar drew a nationwide movement.

What this looks like in real life. A community learns a mine is planned that will clear a forest and threaten its water, its report allowing far less felling than the company intends. The five questions yield: a named company behind it; a site clearing forest and threatening water (the sharp levers); a public meeting and ÇED pending; a project still needing the ÇED and forest-clearance; and a coalition of neighbours and chambers. That's the Kaz Dağlar pattern — object at the meeting, attack the forest-clearance, watch for felling beyond the report, and mobilise.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Kaz Dağlar the decisive evidence was photographs of forest felled far beyond the report. Build it in three layers — safely.

Layer one: the paper trail. Get the documents the decision rests on — the ÇED report, the ÇED Olumlu decision and its conditions, the forest-clearance and permits. Then read the ÇED hard for flaws — an understated impact, an ignored alternative, a water source minimised, a limit on tree-felling the company means to exceed.

Layer two: the ground truth. Dated, located photographs and video of the site, the forest, the water — baseline images before any damage most of all — and, crucially, evidence of any works **exceeding what the ÇED allowed**, which is a powerful ground. Add the testimony of affected residents, carefully.

Layer three: the map of forest, water, and permits. Lay the project over the forest to be cleared, the water source and its basin, and protected areas, so each lever — above all the forest-clearance — is visible. Walking into the administrative court with the ÇED, the permits, and that map is what makes it act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The ÇED report, the ÇED Olumlu decision and conditions, the forest-clearance and permits** — from the e-ÇED system, the ministry, and the governorship; force out the rest as needed (8A).
- **Local records and announcements** — from the governorship and municipality (these start your legal clock).
- **Ownership and financing** — company and investor records.
- **The forest-water-permits map** — the forest to be cleared, the water source and basin, and protected areas, laid over the site.
- **Dated evidence of harm and of works exceeding the ÇED** — photographs marked with date and place.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and the Water and Conscience Watch showed how far a determined community can go. Build your coalition in four moves — and safely.

Start with a tight core. The neighbours most affected, the people who know the forest and water, a few tireless organisers, and respected local figures.

Build the watch and the network. The Turkish tradition is the nöbet — the vigil or watch at the site — and the local association or platform, backed by the wider public. Hold meetings where people see the evidence, and keep the watch peaceful and disciplined.

Bring in the professional chambers and lawyers — early. The bar association and the chambers of engineers, architects, and city planners bring expertise, standing, and the annulment suits; public-interest lawyers run the cases. Reach them early and hand them your documents.

Build to last, and safely. Turkish fights run for years, through repeated re-applications, and can turn dangerous. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Take police force and prosecution seriously, protect the vulnerable, and route danger through lawyers, the chambers, and the press.

STEP 4: LEGAL CHALLENGES & THE COURTS

Law is one of Turkey's sharpest levers, because the administrative courts will annul unlawful approvals and freeze works — even if a win is often not the end.

Object First — It Builds the Record

Everything downstream is stronger if you objected at the public meeting and to the review commission. The court reviews the ÇED on that record, so your objections are the raw material of the challenge.

The Annulment Suit and the Stay

The core route is the **annulment suit (iptal davası)** in the administrative court, asking it to cancel the **ÇED Olumlu** decision — and, critically, to grant a **stay (yürütmeyi durdurma)** to freeze the works while the case runs. The court appoints experts (**bilirkişi**) and often visits the site (**keşif**); their reports frequently decide the case. Grounds include a defective ÇED, an understated impact, and — powerfully — a company **exceeding what the ÇED allowed** (the Kirazlı forest-felling). Appeals climb to the **Council of State**

(Danıştay).

The Forest-Clearance, the Separate Permits, and the ECHR

Don't fight only the ÇED. The **forest-clearance (orman izni)** and **"public benefit" (kamu yarar)** decisions, water allocations, and zoning are **each separately challengeable** — and in several famous Turkish fights the decisive early win came against the *forest-clearance*, not the ÇED. And where domestic remedies fail — a court win ignored, a right violated — the **European Court of Human Rights** is an external lever that has found Turkey in breach over environmental rights before.

The Honest Limits

Straight talk: the courts genuinely annul approvals and freeze works, but a win is often not final — companies re-apply and patch the deficiencies, sometimes without a fresh meeting, and rulings are sometimes not implemented; standing is restrictive (plaintiffs should live in or own property in the area); Turkey is not an Aarhus party; and protest is policed. So use the strong tools — the objections, the annulment suit and stay, the forest-clearance challenge, the ECHR — but pair them with mass mobilisation and the press, plan to fight the *next* approval too, protect your people, and count each annulment, stay, delay, and lapse as a win.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the mine is bad" but *"the ÇED understated the threat to our water source and the company felled far more forest than it allowed — grounds to annul and to halt the works."*

A forest-clearance becomes the soft link. *"The forest-clearance decision is unlawful — and it can be challenged on its own."*

Exceeding the report becomes a halt. *"They cleared nearly two hundred thousand trees where the report allowed a fraction — the works must stop."*

The harm becomes a public story. *"The mountain, the forest, the water our province depends on — for a mine we were never truly asked about."*

Match it to the venue: the objections to the review commission; the flaws and the excess to the annulment suit; the forest-clearance to its own challenge; the human and the mountain to the press.

STEP 5: MEDIA STRATEGY

In Turkey, public attention is a real lever — Kaz Dağları became a national and international story, and that glare drove the company out. A press, professional chambers, and mass mobilisation make the media front central, though it must be handled with care.

Lead with people and place, not procedure. Not "the ÇED was procedurally deficient" but "the mountain, the forest, the water our province depends on — for a mine we were never truly asked about." Use your strongest material: dated photographs (especially of forest felled beyond the report), the map of the project over the water source, and — carefully — human voices.

Work several audiences at once. Local and national press build political pressure; the chambers and environmental networks amplify; international media reach the company's home country and investors (Kaz

Da[redacted]'s pressure reached Canada). Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people — weigh every public act, keep the watch peaceful, and expect policing.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Request for the ÇED and permits (to the ministry / governorship).

Subject: Request for the ÇED and permit documents — [project].

"We, residents of [place], request the ÇED report, the ÇED Olumlu decision and its conditions, and the forest-clearance and permits for [project] at [location]. [Contact.]"

8B — Objection at the public meeting / to the commission.

Subject: Objection — ÇED for [project].

"We, residents of [place], object to the ÇED of [project]: [it understates the threat to our water / forest; the tree-felling limit is inadequate; alternatives were ignored]. We ask that the ÇED be found negative. [Attach evidence.]"

8C — Annulment suit (to a lawyer / chamber).

Subject: ■ptal davas■ and stay — [project].

"We instruct you to bring an annulment suit against the ÇED Olumlu decision for [project], announced [on date], and to seek a stay, on the grounds that [the ÇED was defective / the company exceeded it / the forest-clearance is unlawful]. Please act within the deadline. [Attach the decision, the ÇED and our evidence.]"

8D — Challenge to the forest-clearance (to a lawyer).

Subject: Challenge to the forest-clearance / public-benefit decision — [project].

"We ask you to challenge the forest-clearance (orman izni) / public-benefit (kamu yarar■) decision for [project], which unlawfully clears protected forest at [location]. [Attach the decision and our evidence.]"

8E — To a financier or the company's home embassy.

Subject: Environmental and legal risk in [project].

"We understand your institution/company is [financing / operating] [project] at [location], which [clears protected forest / threatens our water / exceeded its ÇED] and faces active legal challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [mountain / forest / water] from [project].

"For generations the people of [place] have lived with [the mountain / forest / water] at [location]. Now [project] threatens it — and cleared far more forest than it was allowed. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8G — Reporting force or prosecution against defenders.

Subject: Rights of peaceful community members opposing [project].

"Members of our community peacefully opposing [project] have faced [police force / prosecution / pressure]. We ask you to investigate and protect those at risk. [Contact and details.]"

8H — Rallying the community (safely).

Subject: We can protect our mountain and water — here's how.

"[Project] threatens [our forest / water / mountain]. At Mount Ida, the Watch for Water and Conscience drove out a foreign gold mine. With the public meeting, the annulment suit, the forest-clearance challenge, and a peaceful watch behind us, we have a real chance. Please join us — peacefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its footprint, and look for the forest and water levers.** Forest-clearance and a threatened water source are your sharpest.
2. **Object at the public meeting and to the commission (8B).** This builds the record.
3. **Get the ÇED and permits (8A), and watch for felling beyond the report.**
4. **Photograph everything, with dates and places, safely — especially any excess clearance.**
5. **Bring an annulment suit with a stay, and challenge the forest-clearance (8C/8D), with a lawyer or chamber.**
6. **Build a peaceful watch, go public — reach the company's home country too (8F/8H).** Kaz Dağlar■ drove out a foreign miner this way.

Even lean, those six use your rights, build the record, hit the softest links, and mobilise — safely.

WHEN THE SYSTEM IS TILTED

Turkey's tools are real, but the field is heavily tilted, and you must plan for it.

When a court win isn't final. This is the defining tilt: expect the company to re-apply and patch the deficiencies. Plan to fight the next approval too, keep the movement and media alive, and treat each annulment, stay, and delay as a win that buys time and cost.

When standing is restrictive. Plaintiffs should live in or own property in the area — build your case around residents and landowners who clearly qualify.

When the state backs the project and polices protest. Use the courts and the forest-clearance challenge, keep the watch peaceful and disciplined, protect your people, and reach for international attention and the ECHR.

When rulings aren't implemented. Document the non-implementation, press the courts and the Ombudsman, and take it to the ECHR where domestic remedies fail.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Turkey has documented problems with the capture of approvals by politically connected interests, so this matters.

How to spot it. Approvals against the evidence; a ÇED written for the proponent; a public meeting engineered to exclude; permits or contracts steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Court of Accounts (Sayıştay)** examines public money. The **prosecutors** handle graft. The **Ombudsman** takes maladministration complaints. The **administrative courts** can annul a tainted approval. And Turkey's **remaining independent press and the professional chambers** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Don't make public accusations you can't back; they can invite prosecution. Route serious evidence to the proper bodies and trusted journalists, protect insiders and witnesses, and pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the forest and water levers aims it; the watch builds the movement; the annulment suit and the forest-clearance challenge press the case; the media raises the cost. Together they multiply. One at a time, they stall — and remember the fight may repeat.

Early on (weeks 1–8): nail down the project, its footprint, and the forest and water levers; object at the meeting and to the commission; get the ÇED and permits; photograph the baseline and any excess clearance; get a lawyer and the chambers; build a peaceful watch.

In the thick of it (months–years): bring the annulment suit with a stay, and challenge the forest-clearance; press the "exceeded the ÇED" ground; mobilise and open the media front — reaching the company's home country.

The long haul (years): carry the cases to the Danıştay, and — where remedies fail — the ECHR; fight each re-application; keep the movement alive; hold the line for annulments, stays, delays, a licence lapse, or a withdrawal — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Turkey can be done — a community's Watch for Water and Conscience drove a foreign gold mine off Mount Ida. Hold both truths. Turkey's tools are real: a mandatory ÇED with a

public meeting; administrative courts that annul approvals and freeze works; separately challengeable forest-clearance and permits; expert site examinations; and, behind them, the European Court of Human Rights. And the constraints are heavy: a state that promotes extraction, a ÇED written by the developer's firm, restrictive standing, no Aarhus membership, court wins that companies re-apply around, and policed protest.

Here's the discipline that wins. Find the forest-clearance and the water source — the softest links — and the flaw in the ÇED, and gather proof, especially of any clearance beyond the report. Object at the public meeting. Bring an annulment suit with a stay, and challenge the forest-clearance on its own. Build a peaceful watch, carry the story to the nation and the company's home country, and protect your people. Plan to fight the next approval too, and count each annulment, stay, delay, and lapse as a win. That's what Mount Ida did — the watch, the courts, and the world's attention together. So can you — safely.